

		<u>ORDERS</u> Within 10 days of notice of this ruling, extended for method of service, Respondent shall serve further responses to Special Interrogatory Nos. 6, 7, and 8. Counsel for Petitioner shall serve notice of this ruling.
01415299	Campbell - Trust	TENTATIVE RULING Case: Campbell - Trust 01415299 Calendar No: 4 Date: 09/16/26 <u>MOTION TO COMPEL DEPOSITION (ROA 105)</u> Petitioner Daniel Campbell ("Petitioner") moves to compel the deposition of Respondent Sharon A. Campbell ("Respondent"). (ROA 105.) On 10/10/25, Petitioner served Respondent with a Deposition Subpoena for Personal Appearance. No documents were requested. (ROA 105, Porrazzo Decl., ¶ 6, Ex. C.) Three days before the scheduled deposition, Respondent electronically served objections based on standing and privacy. (Id. at ¶ 8, Ex. E.) On 3/25/26, the court denied Respondent's motion for judgment on the pleadings and found that Petitioner has standing. (ROA 153.) On 5/13/26, the court denied Respondent's five motions to quash subpoena and found that lack of standing is not a proper objection to discovery. (ROA 178.) Yet, in opposition to this motion, Respondent continues to assert a lack of standing as grounds for objection to the deposition subpoena. Respondent's objections on the grounds of attorney-client privilege and privacy are premature, as Petitioner has yet to ask Respondent a question. Respondent may raise objections to specific questions asked at the deposition. To the extent Respondent refuses to answer any questions at the deposition, Petitioner may file a motion to compel answers pursuant to Code of Civil Procedure section 2025.480 after meeting and conferring. The mere anticipation of questions that may invade Respondent's privileges or privacy rights is not grounds to avoid a deposition altogether.

		The motion to compel is GRANTED. Counsel shall promptly meet and confer to schedule Respondent's deposition. Said deposition shall take place within 30 days of notice of this ruling, extended for method of service, or by any later date as agreed upon by the parties in writing. The court finds no substantial justification for the opposition to this motion. Pursuant to Code of Civil Procedure section 2025.450(g), the court imposes reasonable fees and costs in the amount of \$4,620.00 jointly and severally against Respondent and her counsel, Mr. Shaver, payable within 30 days of notice of this ruling, extended for method of service, or by any later date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to give notice of this ruling.
01341801	Friedman - Probate	TENTATIVE RULING Case: Friedman - Probate 01341801 Calendar No: 5 Date: 09/16/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 58) Attorney Charles K. Mills seeks to be relieved as counsel for Executor Barry Friedman. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21. Counsel has not filed and served all three forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. Specifically, Counsel has not filed the Order Granting Attorney's Motion to Be Relieved (MC-053), though the form has been served. (ROA 66.) All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. (Cal. Rules of Court, rule 3.1362(d).) Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served